

Smt Bendapudi Wupadrasta Tejaswini vs Sri Bendapudi Vikram Mallik on 2 April, 2025

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI
MAIN CASE No.Tr.C.M.P.No.104 of 2025

PROCEEDING SHEET

Sl. DATE
No.

ORDER

OFFICE
NOTE

01. 02.04.2025 VGKR, J

I.A.No.1 of 2025

Heard Smt. Swati Guda, learned counsel
for the petitioner through virtual hearing.

Learned counsel for the petitioner
contends that the petitioner is none other than
the wife of the respondent/husband, due to the

matrimonial disputes between both the parties, the petitioner/wife is residing separately at Kothagragharam, Vizianagaram at her parents' house.

He would further contend that the petitioner had lodged a complaint under Section 85 of BNS and under Section 4 of the Dowry Prohibition Act vide Cr.No.108 of 2024 and the same is pending for investigation. The petitioner further pleaded that she had filed a Maintenance Case vide F.C.M.C.No.19 of 2025, on the file of Family Judge, Vizianagaram and the respondent/husband is attending the case proceedings in the aforesaid case before the competent Court at Vizianagaram.

Learned counsel for the petitioner would contend that to cause unnecessary inconvenience to the petitioner/wife, the respondent has filed F.C.O.P.No.2335 of 2024, on the file of the Family Judge-Cum-V Additional District Judge, Visakhapatnam, under Section 12(1)(b)(c)2(b) r/w Section 5(ii)(b) of the Hindu Marriage Act, seeking nullity of marriage. He would further contend that the distance between Vizianagaram and Visakhapatnam is approximately 63kms, and therefore, it is very difficult for the petitioner to appear before the Family Judge-Cum-V Additional District Judge, Visakhapatnam, on each and every adjournment without any male support and that the petitioner/wife is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by the learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an interim stay on all further proceedings including the appearance of the petitioner i.e., the respondent in F.C.O.P.No.2335 of 2024, on the file of the Family Judge-Cum-V Additional District Judge, Visakhapatnam, till 08.05.2025.

Learned counsel for the petitioner is permitted to take out personal notice to the respondent through Registered Post with Acknowledgment Due and file proof of service before the Registry.

_____ VGKR, J Admit.

Notice.

Post the matter on 08.05.2025.

_____ VGKR, J SRT